DIFC Courts Rules of Court Order No. 2 of 2021 replacing Part 53 of the Rules of the DIFC Courts

MAY 19, 2021 COURT ADMINISTRATIVE ORDERS

I, Zaki Azmi, Chief Justice of the DIFC Courts, make the following Order: In exercise of the powers conferred on me by Article 8(3)(a) of Dubai Law No. 9 of 2004, as amended; and after having reviewed:

Dubai Law No. 9 of 2004 in respect of the DIFC, as amended;

Dubai Law No. 12 of 2004 in respect of the Judicial Authority at the DIFC, as amended;

DIFC Law No. 10 of 2004 in respect of the DIFC Court Law;

DIFC Order No. 1 of 2014 in respect of the Rules of the DIFC Courts;

1. This Order may be cited as the Rules of Court Order No. 2 of 2021.

2. As of 6 June 2021, the Rules of the DIFC Courts (RDC) Part 53 on Small Claims Tribunal shall be replaced by Schedule 1 to this Order. Schedule 1 to this Order shall hereafter be referred to as “Part 53” of the RDC or “RDC 53”

3. Part 53 shall apply to any cases filed after 6 June 2021 or to cases where a defendant is yet to be served as of 6 June 2021.

4. Any cases filed before 6 June 2021 shall be subject to the previous Part 53.

5. Effective 6 June 2021, any cases filed, regardless of when the judgment or order was issued, will be subject to Part 53.

6. As of 6 June 2021, any references in the rest of the RDC to Part 53 shall refer to Part 53 and not to the previous Part 53.

7. The online version of the RDC shall replace the previous Part 53 with Part 53, as will any future publications of the RDC, until further Order.

Zaki Azmi

Chief Justice of the DIFC Courts

Issued: 19 May 2021